

22STCV23775 22STCV23775

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-16

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Case Number: 22STCV23775 Hearing Date: July 16, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

DIANA MCKNIGHT,

Plaintiff,

vs.

PROMISES KEPT, INC., dba ataraxis

homes,

Defendant.

Case No.:

22STCV23775

Hearing Date:

July 16, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE] ORDER

RE:

PLAINTIFF DIANA

MCKNIGHT'S MOTION TO ENFORCE SETTLEMENT AGREEMENT

Background

On July 22, 2022, Plaintiff Diana

McKnight ("Plaintiff") filed a complaint against Defendant Promises Kept, Inc.

dba Ataraxis Homes ("Defendant"), alleging nine causes of action for (1) Lab. Code § 1102.5 retaliation and discharge; (2) constructive discharge; (3) failure to provide meal and rest periods; (4) failure to pay all wages due, including overtime; (5) failure to provide accurate wage statements; (6) waiting time penalty; (7) failure to indemnify employee; (8) Unfair Competition Law; and (9) failure to provide employment records upon demand.

On August 28, 2024, Plaintiff

identified Lori Buckman as Doe 1 and identified James Buckman as Doe 2.

On January

3, 2025, Plaintiff filed and served a notice of settlement of entire case.

On February

10, 2025, pursuant to stipulation, the Court dismissed the complaint without prejudice. (02/10/25 Minute Order at p. 1.) The

Court retained "jurisdiction to make orders to enforce any and all terms of settlement, including judgment, pursuant to Code of Civil Procedure Section 664.6." (Ibid.)

On March 9,

2026, Plaintiff filed and served the instant motion to enforce settlement

pursuant to CCP § 664.6. Plaintiff moves for an

order enforcing the terms of the settlement agreement between Plaintiff and Defendant pursuant to Code of Civil Procedure section 664.6,

and for post-judgment interest. On April 22, 2026, Plaintiff filed and served a notice of non-opposition. No parties have filed an opposition to date.

On April

29, 2026, the Court heard the instant motion. The Court's tentative order denied the motion for lack of service, but at the hearing it was determined

that Defendant was properly served. However, “the parties agreed to continue the hearing so Defendant can obtain financing to pay the rest of the amount owed.” (Order 4/29/26, 4:10-12.) The Court notes that neither party has indicated that the issues addressed in the motion have been resolved. Accordingly, it will now hear the merits.

Legal Standard

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” ((Code Civ. Proc., § 664.6, subd. (a).)

“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (Hines v. Lukes, (2008) 167 Cal.App.4th 1174, 1182.)

“A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms.” (Ibid.) “The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to.” (Ibid.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Ibid.)

“Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” ((Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810 [internal citations omitted, emphasis in original].)

Discussion

In

support of the motion, Plaintiff's counsel, Sara Simms, declares, inter alia, that "[i]n or about December 2024, the parties executed a written Settlement Agreement resolving the claims in this case." (Simms Decl., ¶ 2, Ex. A.) Defendant was required to make four installment payments of \$11,250.00 on February 1, 2025, June 1, 2025, October 1, 2025, and February 1, 2026. (Simms Decl., ¶ 3, Ex. A at pp. 1-2.) However, Defendant failed to make the October 1, 2025 and February 1, 2026 payments. (Simms Decl., ¶ 3.) "On November 5, 2025, Plaintiff received a partial payment \$5,500 toward the third installment. However, the check was postdated November 11, 2025 and was returned because it was deposited prior to that date. The payment therefore failed." (Simms Decl., ¶ 8.) "As of the filing of this Motion, Defendant has not paid the full third installment due October 1, 2025 and has not paid the fourth installment due February 1, 2026." (Simms Decl., ¶ 13.) "Defendant is presently in material breach of the Settlement Agreement. The total unpaid principal balance is \$22,500.00, representing: \$11,250 (Third installment) and \$11,250 (Fourth installment)." (Simms Decl., ¶ 14.) "Plaintiff has fulfilled all obligations under the Settlement Agreement." (Simms Decl., ¶ 15.)

Plaintiff

demonstrates that a valid and binding settlement agreement exists between the parties. Plaintiff also presented evidence that Defendant failed to comply with the settlement agreement. Accordingly, Defendant owes Plaintiff \$22,500, pursuant to the settlement agreement. Plaintiff also seeks post-judgment interest, which "accrues at the rate of 10 percent per annum on the principal amount of money judgment remaining unsatisfied." (Code Civ. Proc., § 685.010, subd. (a)(1).) Given Defendant's failure to pay, post-judgment interest is also necessary.

Conclusion

Based

on the foregoing, Plaintiff's motion to enforce settlement is GRANTED. Judgment will be entered in favor of Plaintiff and against Defendant in the principal amount of \$22,500.00. Plaintiff is entitled to post-judgment interest at the statutory rate of ten percent per annum pursuant to Code of Civil Procedure section 685.010 from the date of entry of judgment until paid in full.

Plaintiff

is ordered to file and serve a proposed judgment within 10 days of the date of this Order. Plaintiff is ordered to provide notice of this Order.

DATED: July
16, 2026

Hon. Teresa
A. Beaudet

Judge,
Los Angeles Superior Court